

		Plaintiff has not explained why she waited over a year and a half to file the instant motion. Nevertheless, Defendant was on notice that Plaintiff would amend the complaint to add CLRA damages. More specifically, the complaint provides: “At this time, Plaintiff does not seek “damages” under Civil Code § 1780. The CLRA provides that a complaint for violations may be amended without leave of court should the violations not be remedied within 30 days to add a prayer for damages. Should the violations complained of herein not be remedied within the requisite time frame, Plaintiff will amend the complaint to seek all available relief under the CLRA.” (Compl., ¶ 45.) Further, the prayer for relief states, “no request for damages is made under the CLRA until such a time as the CLRA cause of action is amended to add damages”. (Compl., Prayer for Relief, ¶ 6.) Thus, from the time Defendant was served with the complaint, he has been fully aware that Plaintiff would seek damages under the CLRA if the violations were not remedied within 30 days. In addition, the amendment to add the request for CLRA damages does not add “new matter” as Defendant contends. The FAC does not add new violations, causes of action, facts or circumstances. “[W]here an amendment provides merely the addition of matters essential to make the original cause of action complete the amendment should certainly be allowed by the court. Such an amendment effects no change in the nature of the case, and can therefore cause no surprise or prejudice to the adverse party.” (<i>In re Hunter's Estate</i> (1961) 194 Cal.App.2d 859, 865 [cleaned up].) Accordingly, Defendant has not shown he will be prejudiced by the amendment. The motion complies with California Rules of Court, Rule 3.1324. Based on the policy favoring leave to amend, the motion for leave to amend is GRANTED. Plaintiff is to file the First Amended Complaint within 10 days.
9	22-01260184 <i>Melikian vs. Moradian</i>	Motion to Set Aside/Vacate Dismissal The unopposed motion of plaintiff Arshavir Melikian for an order vacating the dismissal of the action entered on June 25, 2025 is GRANTED. Plaintiff asks that the dismissal be set aside under the provision for mandatory relief for attorney fault in Code Civ. Proc. § 473(b). That provision states: Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever

		relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. Plaintiff has submitted the declaration of attorney Arno H. Keshishian in which he declares that he failed to attend the hearing on the OSC re: dismissal held on June 26, 2025 because he inadvertently calendared the hearing to June 26, 2026. Counsel further declares that he was in the middle of a trial at the time, suggesting that his mind was elsewhere. Based on the declaration of fault, the Court grants the motion and sets a status conference for _____, 2026. Plaintiff's counsel is to submit a status report at least five days before this hearing. Plaintiff's counsel should be advised that, to the extent plaintiff seeks a default judgment, the Court's file does not contain any entries of default, which would be necessary before plaintiff can seek default judgment.
11	24-01435993 <i>Noroski vs. Sienna Palmer Ogbevoen, D.D.S., Inc.</i>	Motion for Summary Judgment and/or Adjudication The Motion for Summary Adjudication of Plaintiff's First Amended Complaint (FAC) by Defendants Sienna Palmer Ogbevoen, D.D.S., Inc. and Sienna Nicole Palmer, D.D.S. is DENIED. Defendant's Request for Judicial Notice (ROA 254) of filings in this matter is granted. Plaintiff's objections to evidence (ROA 348) are overruled. Defendants' objections (ROA 36) are also overruled. Defendants move for summary adjudication of Plaintiff's ninth cause of action for false advertising in violation of Business & Professions Code § 17500 and Plaintiff's tenth cause of action for unfair competition in violation of Business & Professions Code § 17200. <u>Legal Standard:</u> Code of Civil Procedure section 437c(f)(1) states, "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." Section 437c(c) provides, "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as